

24VECV01822 24VECV01822

County: los-angeles

Division: Civil Law and Motion

Department: U

Hearing date: 2026-09-04

Motion: DEFENDANTS LG BUILDERS, INC. AND LIOR GOV'S MOTION TO VACATE AND SET ASIDE THE CLERK'S ENTRY OF DEFAULT

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Case Number: 24VECV01822 Hearing Date: September 4, 2026 Dept: U

SUPERIOR COURT OF THE STATE OF CALIFORNIA

FOR THE COUNTY OF LOS ANGELES - NORTHWEST DISTRICT

MELODY CAMPBELL, an individual,

Plaintiff,

vs.

VITTORIO REMODELING & CONSTRUCTION, INC., a California corporation; LG BUILDERS, INC., a California corporation; LIOR GOV, an individual; and DOES 1-20, inclusive,

Defendants.

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CASE NO: 24VECV01822

[TENTATIVE] ORDER RE: DEFENDANTS LG BUILDERS, INC. AND LIOR GOV'S MOTION TO VACATE AND SET ASIDE THE CLERK'S ENTRY OF DEFAULT

Dept. U

8:30 a.m.

September 4, 2026

BACKGROUND

This case is a construction defect action filed by Plaintiff Melody Campbell against Defendants Vittorio Remodeling & Construction, Inc. ("Vittorio"), LG Builders, Inc. ("LG"), and Lior Gov ("Gov").

On April 22, 2024, Plaintiff filed her complaint against Defendants, alleging: (1) negligence against LG and Gov; (2) breach of contract against LG and Gov; (3) breach of implied warranty against LG and Gov; (4) negligence per se against LG and Gov; (5) negligence against Vittorio; (6) breach of contract against Vittorio; (7) breach of implied warranty against Vittorio; and (8) negligence per se against Vittorio.

On November 18, 2024, Plaintiff filed proofs of service documenting personal service of the summons and complaint on LG and Gov by leaving papers with Gov on November 7, 2024, at 2:43 P.M. at the address 7633 Varna Avenue, Suite H in North Hollywood.

On February 3, 2025, the Clerk entered default as to LG and Gov.

On August 11, 2025, the Clerk entered default as to Vittorio.

On February 27, 2026, LG and Gov (hereafter, "Defendants") filed their motion to set aside the Clerk's entry of default.

On April 16, 2026, Plaintiff filed her opposition brief.

On April 29, 2026, the Court issued its tentative ruling denying the motion but continued the hearing to give Defendants time to file a reply brief.

On August 11, 2026, Defendants filed their reply brief.

On August 18, 2026, the Court issued another tentative ruling denying the motion but continued the hearing. Defendants were ordered to file a supplemental brief by August 25, 2026, and Plaintiff was ordered to file a reply by September 1, 2026.

On August 25, 2026, Defendants filed their supplemental brief.

On August 31, 2026, Defendants filed a "Second Supplemental Reply."

Plaintiff filed a reply that same day.

RULING

The motion is denied.

LEGAL STANDARD

"When service of a summons has not resulted in actual notice to a party in time to defend the action and a default...has been entered against him in the action, he may serve and file a notice of motion to set aside the default...and for leave to defend the action. The notice of motion shall be served and filed within a reasonable time, but in no event exceeding the earlier of: (i) two years after entry of a default judgment against him or her; or (ii) 180 days after service on him or her of a written notice that the default... has been entered." Code Civ. Proc., § 473.5 (a).

DISCUSSION

Defendants' August 31, 2026 "Second Supplemental Reply" and its declarations are stricken.

This Court's August 18, 2026, order authorized Defendants a single supplemental brief, due August 25, 2026, and afforded Plaintiff the responding brief due September 1, 2026. (See 8/18/26 Minute Order.) Defendants filed their authorized brief on August 25, 2026 ("Supp. Brief"), then filed an unauthorized second reply on August 31, 2026. The Court may, in its discretion, decline to consider a late-filed paper, so long as the minutes or order so indicate. (Cal. Rules of Court, rule 3.1300.) The Court exercises its discretion here and declines to consider the unauthorized August 31, 2026, filing.

The motion is time-barred under section 473.5.

Defendants' motion fails under Code of Civil Procedure section 473.5. Under that section, a defaulted party must seek relief from entry of default within 180 days of actual notice that default had been entered. See Code Civ. Proc., § 473.5 (a).

Code of Civil Procedure section 587 required Plaintiff to mail the Requests for Entry of Default to Defendants. Plaintiff mailed the Requests to the Varna Address, the address at which Gov was personally served and which he identifies as his office, on February 3, 2025. (Shamtob Decl., ¶ 7.) That mailing served as written notice that the defaults had been entered and started the 180-day period under section 473.5, which expired on August 2, 2025. (See Code Civ. Proc., § 473.5, subd. (a)(ii).) Defendants did not file anything until January 30, 2026, and did not file the operative amended motion until February 27, 2026.

Further, Defendants admit they had actual notice of the default as of July 10, 2025. However, 180 days from July 10, 2025, is January 6, 2026. Defendants original motion was filed January 30, 2026. Therefore, Defendants still fall outside the timeline. Per Code of Civil Procedure section 473.5, Defendants are not entitled to relief from entry of default because they did not file their motion within 180 days of their having written or actual notice.

There is no extrinsic fraud.

Defendants contend Plaintiff's counsel committed extrinsic fraud by agreeing to a stipulation and then declining to sign it. (Supp. Brief., p. 7.) This argument fails. Fraud is extrinsic where it deprives a party of the opportunity to present its case; where a party has proper notice and is not prevented from participating, any fraud is intrinsic and not a ground for relief. (In re Marriage of Stevenot (1984) 154 Cal.App.3d 1051, 1068.) Defendants were not kept from anything. Defendants retained counsel, appeared, announced their intent to move to set aside and negotiated; nothing prevented them from filing the motion they announced. Defendants present no email or other communication from Plaintiff's counsel regarding setting aside the default. The only writing in the record is Plaintiff's counsel's July 17, 2025, email agreeing to the stipulation. There is no fraud in Plaintiff's counsel declining to sign a stipulation, especially when Defendants had more than sufficient time to act after Plaintiff's counsel did not sign the stipulation..

Section 473, subdivision (b) provides no relief.

Defendants contend Code of Civil Procedure section 473, subdivision (b) provides mandatory relief. However, section 473(b) only provides relief when a motion is brought within six months from the date a judgment was entered and is based on counsel's sworn affidavit of fault for not filing the motion earlier. Here, entry of the clerk's defaults occurred on February 3, 2025. Six months from that date is August 3, 2025; Defendants filed nearly six months after that August 2025 date. Thus, the period for Section 473(b) relief had expired by the time they filed their motion.

Section 473, subdivision (d) does not apply.

Defendants argue section 473, subdivision (d) allows the Court to set aside void judgments or orders, and that a motion to do so based on extrinsic evidence showing a lack of proper service can be brought at any time, relying on California Capital Insurance Company v. Hoehn, (2024) 17 Cal. 5th 207. (Supp. Brief, p. 5.) Here, there is no judgment, only clerk's entries of default. Further, the defaults are not void because Defendants were served. Additionally, the Court has weighed the competing declaration previously and found that Gov was personally served. (See 8/18/26 Minute Order.) Therefore, section 473, subdivision (d) does not apply.

The process server's professional name is not a jurisdictional defect.

Defendants now argue the proofs of service are void because the process server signed the proofs of service using a first name that is not his true first name. (Supp. Brief., p. 9.) The Court is unaware of any authority holding that a registered process server's use of the name he goes by professionally voids completed personal service, nor do Defendants cite to any authority. Nehoray, the process server, confirms under oath that his legal name is Siavosh Nehoray and he is known professionally as "Sam." (Nehoray Decl., ¶ 3.) Nehoray further declares his registration number is 2022026461 and that he personally served Gov on November 7, 2024. (Nehoray Decl., ¶¶ 5, 8.) Use of the name "Sam" instead of "Siavosh" does not void the proofs of service.

There is no basis for an evidentiary hearing.

Defendants request the Court reserve two hours for the evidentiary hearing in this matter. (Supp. Brief., p. 10.) The request is untimely and unnecessary. The timeliness bar is independent and dispositive, and no testimony about service with notice of the filing of this action on November 7, 2024, can move the dates to defeat this motion.

CONCLUSION

Defendants LG Builders, Inc. and Lior Gov's motion to vacate and set aside the Clerk's entries of their defaults dated February 3, 2025, is DENIED.

Plaintiff Melody Campbell is ORDERED to give notice.

DATED: September 4, 2026

Lee S. Arian

Judge of the Superior Court